

The complaint alleges sufficient facts to allege a cause of action for constructive eviction against FPI. (Compl. ¶¶ 143-147.) As to the sixth cause of action for constructive eviction, FPI's demurrer is overruled.

Seventh Cause of Action

Defendants demur to plaintiffs' seventh cause of action for retaliatory eviction on the grounds plaintiffs fail to satisfy the heightened pleading requirements applicable to a claim for retaliatory eviction under Civil Code section 1942.5. Specifically, plaintiffs fail to allege facts that plaintiffs engaged in protected activity within the 180-day period preceding the alleged constructive eviction.

As to the seventh cause of action for retaliatory eviction, the demurrer is sustained with leave to amend.

Any amended complaint shall be filed and served on or before **September 28, 2026**.

Defendants' motion to strike

Defendants Woodstream Golden Sands LLC, Woodstream Colony LLC, and FPI Management, Inc. (FPI) move to strike plaintiffs' claim for punitive damages. FPI also moves to strike the prayer for attorneys' fees as against FPI. Plaintiffs Stefani Spanos and Chloe Sepulveda oppose the motion.

The motion is granted. The allegations of the complaint do not sufficiently allege facts establishing oppression, fraud or malice so as to sustain the prayer for punitive damages. (See *Taylor v. Superior Court* (1979) 24 Cal.3d 890, 894; *Smith v. Superior Court* (1992) 10 Cal.Ap.4th 1033, 1041-42.) Further, plaintiffs fail to allege a statutory or contractual basis to support an award of attorneys' fees against FPI.

Defendants' motion to strike is granted with leave to amend. Any amended complaint shall be filed and served on or before **September 28, 2026**.

13. S-CV-0056872 Dowling, Teresa Evelyn v. DMV

Status Conference

Petitioner seeks issuance of a writ of administrative mandate directing respondent to rescind its suspension of petitioner's driver's license or to require respondent to make reasonable accommodations for further testing. Respondent has answered the first amended petition.

Petitioner lodged the administrative record on September 3, 2026. However, according to the parties' joint declaration filed the same day, it appears petitioner intends to file a

motion to augment the administrative record. A review of the court's file reveals no such motion hearing has been reserved pursuant to Local Rule 20.2.

Appearance of the parties is required on **September 15, 2026 at 8:30 a.m. in Department 32.**

14. S-CV-0057073 Foulk, Steven R v. LoanDepot.com

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

Demurrer to the Complaint

Defendant Selene Finance, LP demurs to the first, second, third, and fourth causes of action in the initial complaint. The demurrer is denied as moot in light of plaintiff's first amended complaint filed in advance of the time to oppose the demurrer. (Code Civ. Proc., § 430.41, subd. (e)(1).)

Motion for Preliminary Injunction

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Plaintiff moves for a preliminary injunction against defendant Selene Finance, LP ("Selene") pursuant to Code of Civil Procedure 526 and 527. Specifically, plaintiff moves for a court order requiring defendant Selene to (1) pay all homeowner's insurance premiums from plaintiff's escrow account on or before thirty days prior to each policy renewal date for the duration of this litigation and provide plaintiff with written proof of each payment within five days of disbursement; (2) refrain from enforcing, collecting, or demanding monthly mortgage payments in excess of the contracted amount of \$2,319.84 without first obtaining a court order authorizing any escrow adjustment, pending completion of the court-ordered accounting; (3) refrain from reporting any adverse credit information, initiating or advancing any foreclosure proceedings based on a delinquency, and (c) imposing any forced-placed insurance without first complying with RESPA's force-placed insurance notice requirements; and (4) maintain the status quo regarding real property at 4932 Gladding Road, Lincoln, California 95648. Selene opposes the motion.

The court may grant a preliminary injunction when it appears from the complaint plaintiff is entitled to the demanded relief and plaintiff would suffer irreparable injury if the enjoined action were allowed to proceed. (Code Civ. Proc., § 526, subd. (a).) In making this determination, "the court must consider whether the party seeking the injunction is likely to prevail on the merits" and balances the relative harm to the parties. (*Mitsui Manufacturers Bank v. Texas Commerce Bank-Ford Worth* (1984) 159 Cal.App.3d 1051, 1059.) The plaintiff has the burden of showing they would be harmed without a preliminary injunction. (*Casmalia Resources, Ltd. v. County of Santa Barbara* (1987) 195 Cal.App.3d 827, 838.) The more likely it is a party will prevail on the merits, the less